

**Superior Court of the State of California
County of Orange**

DEPT C13 TENTATIVE RULINGS

The Honorable Nico A. Dourbetas

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4 p.m. on the day before the motion is set to be heard. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5213. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Appearances: Counsel may appear by video on Zoom.

1. Visit <https://www.occourts.org/media-relations/aci.html>

Date: September 22, 2026

Ragland vs. Wells Fargo 2020-01137118	Motion to Quash Trial Subpoena Non-party Sand Canyon Corporation's motion to quash plaintiff Pam Ragland's subpoena duces tecum is GRANTED in its entirety. (Code Civ. Proc., § 1987.1, subd. (a) [authorizing requested relief].) First, the subpoena was not personally served, as required by Code Civ. Proc., § 1987. (ROA 2523, Ex. 1 [subject subpoena]; ROA 2562, Ex. B [proof of service].) Service
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		on a designated agent for service of process, as occurred here, is insufficient. (In re Abrams (1980) 108 Cal.App.3d 685, 690 ["reliance on statutes and authorities regarding service of summons and permitting service of summons on an authorized agent, was misplaced in the context of a deposition subpoena, in the absence of any statutory language 'authorizing personal service of a witness subpoena'"]; see also In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1288 [lack of personal service "imposes no obligations on a nonparty deponent"].) Second, moving party's custodian of records is a Florida resident, who cannot be compelled to appear and testify in California. It is well settled that a nonresident cannot be compelled by subpoena to testify in CA. (Code Civ. Proc., § 1989 ["A witness, including a witness specified in subdivision (b) of Section 1987, is not obliged to attend as a witness before any court, judge, justice or any other officer, unless the witness is a resident within the state at the time of service"]; Amoco Chemical Co. v. Certain Underwriters at Lloyd's of London (1995) 34 Cal.App.4th 554, 559 ["Notice to Appear and to Produce Documents At Trial," requiring the "attendance of [Defendants'] Custodian of Records, or such other officers, directors or managing agents" responsible for maintaining documents described in the notice, quashed on grounds that custodians were not California residents]; ROA 2523, St. George Decl., ¶ 3 [custodian resides in Florida].) Third, compliance with the broad nature of the documents demanded is oppressive, particularly given the short time between service and trial. (Code Civ. Proc., § 1987.1, subd. (a) [court may "any other order as may be appropriate to protect the person from unreasonable or oppressive demands"]; ROA 2523, St. George Decl., ¶ 14, Ex. 1 [subpoena served 9-4-26, 10 days prior to noticed 9-14-26 trial date]; see also id. at ¶¶ 7-13, 16 [burden / oppression in compiling requested documents, given that responsive documents are maintained in multiple
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		locations / sources, and the short time before trial].) Finally, this Court has granted defendants' motion in limine no. 7, "to exclude any evidence, argument, or opinion regarding the validity of the assignments of the deed of trust and loan transfers and the resulting foreclosure sale of the Kitterman Property" (ROA 2160), on the grounds that plaintiff lacks standing to challenge the validity of loan assignments and/or chain of title. Accordingly, there is no "good cause for the production of the matters and things described in the subpoena," nor is the testimony sought "material." (Code Civ. Proc., § 1985, subd. (b).) Moving party shall give notice.
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